



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 16, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202100819 regarding Lieutenant Donald Evans, Tax No. 948941 (DADS No. 2022-25783) and Detective Shon Simmons, Tax No. 952241 (DADS No. 2022-25784)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Detective Simmons will receive no disciplinary action for the threat of force allegation and that Lieutenant Evans will receive training for the threat of arrest.

In this matter, Detective Simmons, while struggling to handcuff the complainant, stated "You're gonna get sprayed" in an effort to gain the complainant's compliance. While the CCRB characterized the complainant as passively resisting, the officers clearly described her actions as actively resisting, which is corroborated by video evidence. As described by the officers and evidenced in the numerous videos capturing the arrest, the complainant did not merely go limp or stand motionless; rather, the complainant struggled and actively prevented her arms from being handcuffed. Detective Simmons followed recommended guidelines by repeatedly stating that O.C. spray would be used if the complainant failed to comply. Further, as in this instance, the mere threat of using the O.C spray in an effort to

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gain compliance of a resisting individual should not automatically constitute an improper threat of force, especially when the outcome results in less injuries to both the officer and the arrestee.

In this matter, Lieutenant Evans advised the complainant that she would be charged with a new crime if she did not agree to be fingerprinted and/or photographed. CCRB contends that the only remedy available to Lieutenant Evans would have been to remove the complainant to the Court Section, as per established procedure. While the Police Commissioner agrees that Lieutenant Evans could have immediately followed procedure and removed the complainant to the Court Section instead of releasing her on a Desk Appearance Ticket, there was no obvious malice in attempting to convince her to comply with being fingerprinted/photographed so that she could be expeditiously released at the stationhouse rather than the protracted process of being removed to another facility. Thus, training is a more appropriate outcome as opposed to a disciplinary penalty.

Therefore, based on the foregoing, the Police Commissioner has determined that Lieutenant Evans will receive Training and Detective Simmons is to receive no disciplinary action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', is written over a large, loopy circular flourish.

Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office